

CV-23-002864 GUTIERREZ, WENDY MARILYN QUINTERO vs MERCADO, JORGE – a) Defendants Jorge Mercado and Josephine Mercado's Motion for Imposition of Discovery and Monetary Sanctions Against Plaintiffs and/or their Counsel- GRANTED in part. b) Defendants Jorge Mercado and Josephine Mercado's Motion for Imposition of Discovery and Monetary Sanctions Against Plaintiffs and/or their Counsel - GRANTED in part.

County: stanislaus

Division: Civil Law and Motion

Department: 21

Hearing date: 2012-04-02

Motion: a-b) The pleadings in this matter are not uniformly helpful. Defendants argue about an expert disclosure issue which does not involve them and appears to be used as character evidence. This does not advance the issue. Plaintiff spends much of her briefing on the following points: 1.The Court's initial decision was wrong and should be reversed. 2.Defendants have repeatedly lied. 3.New defense counsel is different than prior defense counsel and is bad at her job. None of these points assist the Court. On July 9, 2026, the Court ordered further responses to 14 special interrogatories noting that answers appeared to be evasive, incomplete, and that citations to the Complaint were insufficient. On July 20, 2026, Plaintiffs provided a response that they had no further information. The Court intends to limit issues raised at trial as to the information provided in response to the interrogatories. Plaintiffs imply that they have information developed in discovery as to which of the items in Special Interrogatory 1 that the Mercados knew or should have known about at the time of the sale but do not provide it. The Court finds as follows on whether items will be allowed or disallowed based on the initial disclosure to those items undisclosed by any defendant: Items 1 and 2: Allowed: Cracks in foundation. Item 3: Allowed: Roofing of structure, permitting on roofing. Disallowed: "Electrical," as the lack of specificity is fatal. "May be too close to property line," as this is equivocal and does not articulate the safety issues. Item 4: Allowed: Gas leaks, safety device, heat changer cracks in HVAC system. Item 5: Disallowed in full. The defect which caused any leak and where that leak came from is unstated. Item 6: Allowed: Shower leak. Item 7: Disallowed in full. No description of the damage or the nature of the impropriety in construction. Item 8: Allowed: Improper waterproofing behind shower walls. Disallowed: All else, as it appears conjectural. Item 9: Allowed: Leaky gutters. Item 10: Disallowed in full. "Inadequate," is insufficient. The Court addresses here only the issues in the motion. The Court treats this effectively as a motion in limine and declines to issue further monetary sanctions, though I seriously considered otherwise.

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1.The Court's initial decision was wrong and should be reversed.

2.Defendants have repeatedly lied.

3. New defense counsel is different than prior defense counsel and is bad at her job.

None of these points assist the Court.

On July 9, 2026, the Court ordered further responses to 14 special interrogatories noting that answers appeared to be evasive, incomplete, and that citations to the Complaint were insufficient. On July 20, 2026, Plaintiffs provided a response that they had no further information.

The Court intends to limit issues raised at trial as to the information provided in response to the interrogatories. Plaintiffs imply that they have information developed in discovery as to which of the items in Special Interrogatory 1 that the Mercados knew or should have known about at the time of the sale but do not provide it.

The Court finds as follows on whether items will be allowed or disallowed based on the initial disclosure to those items undisclosed by any defendant:

Items 1 and 2: Allowed: Cracks in foundation.

Item 3: Allowed: Roofing of structure, permitting on roofing. Disallowed: "Electrical," as the lack of specificity is fatal. "May be too close to property line," as this is equivocal and does not articulate the safety issues.

Item 4: Allowed: Gas leaks, safety device, heat changer cracks in HVAC system.

Item 5: Disallowed in full. The defect which caused any leak and where that leak came from is unstated.

Item 6: Allowed: Shower leak.

Item 7: Disallowed in full. No description of the damage or the nature of the impropriety in construction.

Item 8: Allowed: Improper waterproofing behind shower walls. Disallowed: All else, as it appears conjectural.

Item 9: Allowed: Leaky gutters.

Item 10: Disallowed in full. "Inadequate," is insufficient.

The Court addresses here only the issues in the motion. The Court treats this effectively as a motion in limine and declines to issue further monetary sanctions, though I seriously considered otherwise.